

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1179

By: Stark

AS INTRODUCED

An Act relating to schools; amending Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2024, Section 6-401), which relates to communications with students; adding definition; adding alternate adult to certain communication requirements; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2024, Section 6-401), is amended to read as follows:

Section 6-401. A. As used in this section:

1. "Alternate adult" means a case manager employed by a homeless shelter, transitional living, or a continuum of care lead agency assigned to a student who is considered homeless children and youth as defined in Section 600 of Title 10 of the Oklahoma Statutes;

2. "Electronic or digital communication" includes, but is not limited to, emails, text messages, instant messages, direct messages, social media messages, messages sent through software

1 applications, and any other electronic or digital means of
2 communication; and

3 2. "School personnel" means teachers, coaches, administrators,
4 school bus drivers, or any other persons employed full-time or part-
5 time by a public school or charter school.

6 B. School personnel engaging in electronic or digital
7 communication with an individual student shall include the student's
8 parent ~~or~~, legal guardian, or alternate adult in any electronic or
9 digital communication, unless such communication is on a school-
10 approved platform and related to school and academic communications.

11 C. Exceptions to the requirement in subsection B of this
12 section may be made in case of an emergency, subject to subsequent
13 notification to the parent ~~or~~, legal guardian, or alternate adult.
14 School personnel shall make reasonable efforts to use school-
15 approved platforms, systems, or applications that allow automatic
16 inclusion of parents ~~or~~, legal guardians, or an alternate adult in
17 communications with students.

18 D. Schools shall provide training, developed by the State
19 Department of Education, for school personnel on the student
20 communication requirements of this section.

21 E. Any school personnel who is reported to be in violation of
22 subsection B of this section shall be put on administrative leave
23 while the school district investigates the incident and notifies the
24 board of education. If the investigation finds that no misconduct

1 occurred, the school personnel shall be reinstated and the incident
2 shall be noted in the school personnel's employee file. If the
3 investigation finds misconduct occurred, the school personnel shall
4 be disciplined according to the school district board of education's
5 policy, up to and including termination of employment, and the
6 incident shall be reported to law enforcement pursuant to Section
7 1210.163 of Title 70 of the Oklahoma Statutes.

8 SECTION 2. This act shall become effective July 1, 2025.

9 SECTION 3. It being immediately necessary for the preservation
10 of the public peace, health or safety, an emergency is hereby
11 declared to exist, by reason whereof this act shall take effect and
12 be in full force from and after its passage and approval.

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